

25STLC06561 25STLC06561

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-21

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Case Number: 25STLC06561 Hearing Date: September 21, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff State Farm Mutual Automobile Insurance Company's Motion to Deem Requests for Admission Admitted and Request for Sanctions is Granted. Defendant Micah Charles Roberts is ordered to pay sanctions of \$460.00 to Plaintiff's counsel within 20 days' service of this order.

Analysis:

Plaintiff State Farm Mutual Automobile Insurance Company ("Plaintiff") served Requests for Admissions, Set One, on Defendant Micah Charles Roberts ("Defendant") on December 5, 2025. (Motion, Ahearn Decl., Exh. A.) As of the filing of the instant Motion to Deem Requests for Admission Admitted on January 30, 2026, Defendant has not served responses to the discovery. (Id. at ¶¶1-2.) Plaintiff now moves for an order deeming the Requests for Admission admitted pursuant to Code of Civil Procedure section 2033.280. Defendant filed an opposition to the Motion, but neither argues nor declares that he served responses to the requests. (See Opp., Roberts Decl., ¶24) Instead, Defendant appears to argue regarding the merits of the action and points to a response dated January 8, 2026 stating that he would provide responses. (Ibid.)

There is no requirement for a prior meet and confer effort before a motion to deem requests for admission can be filed. (Code Civ. Proc., § 2033.280.) Further, the motion can be brought at any time after the responding party fails to serve responses. (Code Civ. Proc., § 2033.280.) Due to Defendant's failure to timely serve verified responses to the requests and resultant waiver of objections, Plaintiff is entitled to an order

deeming the Requests for Admission, Set One, admitted. (Code Civ. Proc., § 2033.280.)

The Court is required to award sanctions under the moving statute. (Code Civ. Proc., § 2033.280, subd. (c).) Sanctions are granted against Defendant in the amount of \$460.00 based on two hours of attorney time billed at \$200.00 per hour, plus the \$60.00 filing fee. (Motion, Ahearn Decl., ¶13.)

Conclusion

Plaintiff State Farm Mutual Automobile Insurance Company's Motion to Deem Requests for Admission Admitted and Request for Sanctions is Granted. Defendant Micah Charles Roberts is ordered to pay sanctions of \$460.00 to Plaintiff's counsel within 20 days' service of this order.

Moving party to give notice.